Claim form

Employment Tribunal — Form ET1

Case number (office use): 3204418/2025 ACAS early conciliation certificate: R123456/24/71

Section 1 — Your details (the claimant)

1.1 Title	Dr
1.2 First name	Rebecca Anne
1.3 Surname	Whitmore
1.4 Date of birth	12 May 1977
1.5 Address	14 Cranmer Gardens, Wokingham RG40 2LS
1.6 Contact	c/o Ashworth Quinn LLP (representative)

Section 2 — Respondent’s details

2.1 Name of respondent	Ashbourne Healthcare Group Limited
2.2 Address	Kingsmead House, 47 Priory Road, Reading RG1 4NP
2.3 ACAS EC number	R123456/24/71

Section 3 — Multiple claims

Are you making this claim with others? No.

Section 4 — Employment details

4.1 Employment start date	3 September 2018
4.2 Employment end date	20 December 2024
4.3 Job title	Clinical Governance Lead & Registered Manager, Ferndene Court
4.4 Still employed?	No
4.5 Gross annual pay	£92,000 (package c.£104,000)

Section 8 — Type of claim

The claimant brings the following complaints:

- Automatic unfair dismissal — dismissal for making protected disclosures (s.103A Employment Rights Act 1996).
- Detriment on the ground of making protected disclosures (s.47B Employment Rights Act 1996).
- Unfair dismissal (s.98 Employment Rights Act 1996), in the alternative.

Section 8.2 — Details of claim

The claimant was employed as Clinical Governance Lead and Registered Manager of the respondent’s Ferndene Court care home from 3 September 2018 until her dismissal on 20 December 2024.

Between June and November 2024 the claimant made a number of protected disclosures to the respondent, in writing and at governance meetings, concerning: (i) unsafe night-time staffing ratios at Ferndene Court; (ii) delays and under-reporting of medication errors; and (iii) pressure to admit residents beyond the home’s assessed safe occupancy. The claimant

reasonably believed these disclosures tended to show breaches of legal obligations under the Health and Social Care Act 2008 and associated regulations, and a danger to the health and safety of residents, and that the disclosures were in the public interest.

On 6 November 2024 the claimant's role was placed at risk of redundancy as part of a purported restructuring of the respondent's East Region. The claimant contends that the selection pool was drawn artificially narrowly around her role and that the consultation was a sham. The claimant was dismissed on 20 December 2024 ostensibly by reason of redundancy.

The claimant contends that the true reason, or principal reason, for her dismissal was that she had made the protected disclosures, such that the dismissal is automatically unfair under s.103A ERA. Further or alternatively, she was subjected to detriments contrary to s.47B ERA, including exclusion from clinical decision-making and selection for redundancy. Further or in the alternative, the dismissal was unfair under s.98 ERA by reason of a defective and predetermined process.

Section 9 — What do you want if your claim is successful?

- Compensation (uncapped in respect of the s.103A claim), including loss of earnings, pension and benefits, and an award for injury to feelings in respect of the s.47B detriment.
- A declaration and a recommendation.

A schedule of loss is attached, quantifying the claimant's total loss at £206,460, with a net sum sought of £178,660 after credit for sums received.

Section 11 — Representative

Name of representative	Ms Eleanor Bartlett
Organisation	Ashworth Quinn LLP
Address	30 Finsbury Circus, London EC2M 7EA
Reference	AQ/EB/WHIT/2451

Signed: E. Bartlett (on behalf of the claimant) Date: 30 January 2025